

26TRCV01494 26TRCV01494

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-22

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Case Number: 26TRCV01494 Hearing Date: September 22, 2026 Dept: B

Moving Parties: Attorney Eli E. Hamblet,
plaintiff Rylan Tallman's counsel

Responding Party: None

Motion to Be Relieved
as Counsel

The Court
considered the moving papers.

RULING

The
motion is GRANTED. The Court orders that
Eli E. Hamblet is relieved as counsel of record for plaintiff Rylan Tallman,
effective upon the filing of the proof of service of the signed "Order Granting
Attorney's Motion to Be Relieved as Counsel – Civil" (Judicial Council form
MC-053) upon the client.

BACKGROUND

On April
24, 2026, plaintiff Rylan Tallman filed a complaint against Anx Elite and Empro
Staffing LLC for wrongful termination, retaliation, Labor Code violations, and
unfair business practices.

LEGAL

STANDARD

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice.

See *Ramirez v. Sturdevant*

(1994) 21 Cal. App. 4th 904, 915; *People*

v. Prince (1968) 268 Cal. App. 2d 398.

CRC

Rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

DISCUSSION

Plaintiff's attorney, Eli E. Hamblet, seeks to be relieved as counsel of plaintiff.

Counsel states in his declaration that counsel has determined that continued representation of plaintiff is no longer feasible due to a breakdown of attorney client communication.

The Court

finds that the attorney submitted a declaration establishing that the service requirements of California Rules of Court, Rule 3.1362, have been satisfied. The Court also finds that the attorney has shown sufficient reason why the motion to be relieved as counsel should be granted.

The motion is GRANTED.

ORDER

The
motion is GRANTED.

The Court
orders that Eli E. Hamblet is relieved as counsel of record for plaintiff Rylan Tallman, effective upon the filing of the proof of service of the signed "Order Granting Attorney's Motion to Be Relieved as Counsel – Civil" (Judicial Council form MC-053) upon the client.

Moving
counsel is ordered to give notice of this ruling.